THE SIKH GURDWARAS (SUPPLEMENTARY) ACT, 1925.

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1. Short title and commencement
2. Validation of certain provisions of Punjab Act VIII of 1925
3. [Repealed]

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THE SIKH GURDWARAS (SUPPLEMENTARY) ACT, 1925

ACT NO. XXIV OF 1925

[11th *September*, 1925]

An Act to supplement certain provisions of the Sikh Gurdwaras Act, 1925

WHEREAS it is expedient to supplement, [1][* * *] certain provisions of the Sikh Gurdwaras Act, 1925 (Punjab Act VIII of 1925), for the purposes hereinafter appearing ; It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Sikh Gurdwaras (Supplementary) Act, 1925.

(2) It shall come into force on the date [2]appointed by the [3][Provincial Government] under sub-section (3) of section 1 of the Sikh Gurdwaras Act, 1925(Punjab Act VIII of 1925).

2. Validation of certain provisions of Punjab Act VIII of 1925.—The Sikh Gurdwaras Act, 1925 (hereinafter referred to as the said Act), shall, so far as it adds to or takes from the jurisdiction of the High Court [4][* *] at Lahore or prescribes the procedure of the said Court, be as valid as if it had been passed by the [5][Central Legislature].

3. [6][Repealed]

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Date: 15-08-2024

[1]Omitted by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 3 and 2nd Sch.
[2]The 1st November, 1925 ; *see* Punjab Gazette 1925, Pt. I, p, 712.
[3]Subs. by the A.O., 1937.
[4]Omitted by Central Adaptation of Laws Order, 1964(P. O. 1 of 1964), Art. 2 and Sch.
[5]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 4 and Third Sch.
[6]Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Sch.

THE PUBLICATION OF THE HOLY QURAN (ELIMINATION OF PRINTING ERRORS) ACT, 1973

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THE PUBLICATION OF THE HOLY QURAN (ELIMINATION OF PRINTING ERRORS) ACT, 1973

ACT NO. LIV OF 1973

[28th *July, 1973*]

An Act to ensure publication of the text of the Holy Quran free from errors of printing

WHEREAS it is expedient to ensure publication of the text of the Holy Quran free from errors of printing, and matters connected therewith;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Publication of the Holy Quran (Elimination of Printing [1][and Recording] Errors) Act, 1973.

(2) It extends to the whole of [2][Islamabad Capital Territory.]

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

[3][(a) "Ayah" means a sentence, clause or verse of the Holy Quran at the end of which the sign "O" is given in the standard copy;

[2][(b)] "Committee" means the Committee of Ulema appointed under section 4;]

[2][(c) "damaged or *Shaheed* copy of the Holy Quran" includes:

(i) a sub-standard copy of the Quran, damaged or worn-out pages of the Holy Quran;

(ii) any other material in the form of book, magazine, card, bill, flex etc. that contains Arabic Text of the Holy Quran;

(d) "disposal" means collection and storage of demaged or *shaheed* copy of the Holy Quran and includes its burial under the ground or its disposal in the sea or river or re-cycling it in such manner as conforms to its holiness and sanctity;]

[2][(e)] "Holy Quran" means the Holy Quran in the Arabic text, published in complete form, or in the form of parts *(Paras)* or Chapters *(Surahs)*, but does not include extracts published in text-books or prayer-books or religious treaties;

[2][(f)] "prescribed" means prescribed by rules made under this Act;

[2][(g) "Quran Board" means the Board constituted under section 4;]

[1][[2][(h)] "record of the Holy Qur'an" means the Holy Qur'an recited in human voice and recorded by any modern means of recording conforming to the text thereof contained in the standard copy;

[2][(i)] "recording company" means a person, or an association of persons, registered under section 3 as a recording company;]

[2][(j)] "standard copy" means a copy of the Holy Quran authenticated by the [2][Quran Board] as correct and free from errors of printing.

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[1]Ins. by Act No. X of 1987, ss. 2-3.
[2]Subs., re-numbered and ins. by Act No. II of 2024, ss. 2-3.
[3]Subs. by Act No. XXXVIII of 1976, s. 2.

3. Registration of publishers [1][and recording companies].—Any publisher who intends to publish [1][, and any recording company which intends to record, the Holy Qur'an shall get himself or itself] registered with the Auqaf [2][Directorate, Islamabad Capital Territory,] [2][***], on payment of such fee and on such terms and conditions as may be prescribed.

4. [2][**Quran Board].**—(1) The Federal Government shall [2][constitute a Quran Board] comprising prominent Ulema, *Huffaz* and *Qaris* of all schools of thought amongst Muslims.

[2][(2) The Federal Government shall in the prescribed manner cause a copy of the Holy Quran to be prepared and shall forward it to the Quran Board for authentication as a standard copy.

(3) The Federal Government shall in the prescribed manner keep the standard copy in the Government archives for safe custody including to upload it on website of the Division to which business of religious affairs stands allocated.]

[2][(4) The Quran Board shall recommend steps for error-free printing and publication or recording of the Holy Quran and shall, subject to the direction of the Government, supervise the work of error-free printing and publication and recording of the Holy Quran including uploading the copies on the Internet.

(5) The Quran Board shall perform such other functions as may be prescribed.]

5. Publishing of the Holy Quran.—(1) A publisher may print the Holy Quran in off-set, photostate, photo-block or any other modern system of printing but he shall not print it in litho process.

(2) In printing the Holy Quran, a publisher shall use paper the use of which is not prohibited by the Federal Government.

(3) Every publisher shall get his specimen copy [1][, and every recording company shall get its specimen record,] of the Holy Quran compared with the text of the standard copy by a person holding a diploma from a religious institution or a certificate of *Moulvi Fazil* or a qualified *Qari* who is also a *Hafiz* or a person trained in the job of proof reading in Arabic and have a certificate recorded by such person at the end to the effect that the text and references do not contain any error.

(4) The publisher shall ensure—

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(a) that the serial number of every Chapter (*Surah*) is printed on every page and the serial number of every [3][Ayah] is inserted within the sign of conclusion (o) of every [3][Ayah];

(b) that the cover page of every edition of the Holy Quran clearly bears the name of the publisher, the name of the printing press, and the year of publication;

(c) that every page of the Holy Quran bears the indication given in the illustration in the Schedule; and

(d) that on detection of any error or omission in the printed Holy Quran the leaf on which it occurs is replaced by a fresh leaf free from such error and omission in each copy:

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[1]Ins. and subs. by Act No. X of 1987, ss. 4-5.
[2]Subs., omitted and added by Act No. II of 2024, ss. 4-5.
[3]Ins. and subs. by Act No. XXXVIII of 1976, s. 3.

Provided that he shall not be penalized for non-compliance with the provisions of paragraphs (a) and (c) [1][unless he is found negligent in the performance of his duty].

(5) No translation of the Holy Quran shall be published [2][or recorded] without its Arabic text.

[1][(5a) Arabic text of the Holy Quran shall not be printed on newspapers, flexes, cards, hand bills, brochures or on any other such disposable forms, and only its translation shall be printed in such forms where required.]

[2][(6) No record of the Holy Qur'an which injuries its sanctity in any form shall be prepared].

[3][**5A. Literal distortion of the text of *Ayah*.**—Where, in a copy [2][or record] of the Holy Quran or in any extract thereof published in a text-book, prayerbook, religious treatise or otherwise, an Ayah has been so literally distorted, either by change of a word, or of sequence, or of Aarab, as to alter its meaning, the printer or publisher thereof [2][or, as the case may be, recording company], whether registered under this Act or not, shall, unless he [2][or it] can prove that such distortion occurred only due to a printing [2][or mechanical] error, be liable to the punishment provided for in section 6.]

[2][**5B. Translation or interpretation of the Holy Qur'an contrary to belief of Muslims.**—Where, in a copy or record of the Holy Qur'an, or in any extract thereof published in a text book, prayer book, religious treatise or other book, an Ayah of the Holy Qur'an is translated, interpreted or commented upon by a non Muslim contrary to the belief of Muslims, the author, printer or publisher, or the person who prepared the record, whether registered under this Act or not, shall, unless he can prove that such translation, interpretation or commentary occurred only due to a printing or mechanical error, be liable to the punishment provided for in section 6.]

[1][**5C. Disposal of damaged or *shaheed* copies.** —A publisher or a recording company shall make suitable arrangements in the prescribed manner for disposal of damaged or *shaheed* copy of the Holy Quran.]

6. Penalty.—[2][(1) A printer or publisher who, or a recording company which, contravenes any provision of this Act or the rules made thereunder, or a person in whose voice a record is prepared, or a person who has certified, under sub-section (3) of section 5, a specimen copy, or record, of the Holy Qur'an which is not in conformity with the provisions of this Act shall be liable to imprisonment for a term which may extend to three years, or with fine amounting to not less than [1][twenty] thousand rupees, or with both.]

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(2) The registration under section 3 of a publisher who [2][, or recording company which,] is convicted of an offence under sub-section (1) may be cancelled.

7. Offences by corporations.—If the person guilty of an offence under sub-section (1) of section 6 is a company or other body corporate, every director, manager, secretary or other officer thereof shall, unless he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission thereof, be deemed to be guilty of such offence.

8. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for—

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[1]Ins. added and subs. by Act No. II of 2024, sss. 6-8.
[2]Ins. and added by Act No. X of 1987, ss. 5-8.
[3]Ins. by Act No. XXXVIII of 1976, s. 4.

[1][(a) the inspection of the copies and records of the Holy Qur'an printed or, as the case may be, prepared before the commencement of this Act;]

(b) the prohibition of the sale of copies [1][and records] containing errors [2][;]

[2][(c) the checking of all such copies [1][and records] of the Holy Quran as have not been certified under this Act as free from errors, at the expense of the publisher [1][or recording company]; [3][*]

(d) the seizure of such copies [1][or records] of the Holy Quran in which there exist errors which cannot, in the opinion of the prescribed authority, easily be corrected in print [1][or record] [3][;]]

[3][(e) the constitution and functions of the Quran Board; and

(f) the disposal of damaged and *shaheed* copies of the Holy Quran.]

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[*See* section 5(4) (c)]

Illustration

Upper side of the page

Serial number of *Surah* with caption as البقرة-٢

Page number ٢

Serial number of *Para* with opening words as تلك الرسل ٣

Lower side of the page

Serial number of *Surah* with serial number of the concluding *Ayah* on the page as "سورہ-٢ آیۃ ٢٨٦"

Manzil

Serial Number of *Surah* with opening *Ayah* on the page as "سورہ-٥ آیۃ-٥"

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RGN Date: 03-09-2024

[1]Subs., ins. and added by Act No. X of 1987, s. 9.
[2]Subs. by Act No. XXXVIII of 1976, s. 5.
[3]Omitted, subs. and added by Act No. II of 2024, s. 9.

THE PAKISTAN MADRASAH EDUCATION (ESTABLISHMENT AND AFFILIATION OF MODEL DINI MADARIS) BOARD ORDINANCE, 2001

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THE PAKISTAN MADRASAH EDUCATION (ESTABLISHMENT AND AFFILIATION OF MODEL DINI MADARIS) BOARD ORDINANCE, 2001

ORDINANCE NO. XL OF 2001

[18th August, 2001]

An

Ordinance

to enable the establishment of Model Dini Madaris to improve and secure uniformity of standards of education and for the integration of the system of Islamic education imparted at ***dini madaris*** *within the general education system;*

WHEREAS it is expedient to provide for securing the registration, regulation, standardization and uniformity or curricula and standard of education of the **dini madaris** imparting specialized Islamic education in Pakistan with the general education system in order to enable recognition of equivalence of the degrees, certificates and asnad awarded by such institutions and to regulate their examination system and the matters connected therewith or ancillary thereto;

AND WHEREAS there is need that the Dini Madaris maintain their autonomous character and are better organized for the promotion of full-fledged, comprehensive and specialized Islamic Education along with subjects of general education system;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

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1**. Short title, extent and commencement**.—(1) This Ordinance, may be called the Pakistan Madrasah Education (Establishment and Affiliation of Model ***Dini Madaris***) Board Ordinance, 2001.

(2) It extends to the whole Pakistan.

(3) It shall come into force on such date as the Federal Government may, by notification in the official Gazette, specify in this behalf and different dates may be so specified for different areas.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Academic council" means the Academic Council established under section 10;

(b) "affiliated ***dini madaris***" means the ***dini madaris*** or ***darul ulooms*** which are affiliated with the Board;

(c) "Board" means Pakistan Madrassah Education Board, constituted under section 3;

(d) "Controlling Authority" means the Chairman of the Board;

(e) "Dini Madaris" means religious educational institutions including Dini Madaris or Darul Ulooms established for the purpose of imparting Islamic Education with Islamic teachings and instructions as the principal competent of their curricula;

(f) "Federal Government" means the Ministry of Religious Affairs;

(g) "general education system" means the education system as recognized by the Ministry of Education, Government of Pakistan;

(h) "member" means the member of the Board;

(i) "Model Madrassah or Model *Darul-Uloom*" means a Madrassah or a Darul Uloom established by or affiliated to the Board under this Ordinance;

(j) "Nazim or Sadr" means the Nazim or Sadr of a Wifaq or Tanzeem;

(k) "prescribed" means prescribed by rules or regulations made under this Ordinance;

(l) "qualifications" means any diploma, degree, ***sanad*** or other certificate in recognition of having fully completed the necessary course of study or training as recognized by the Board;

(m) "regulations" means regulations made under this Ordinance;

(n) "rules" means rules made under this Ordinance;

(o) "students" means persons of any sex receiving education in a recognized or reputable religious institution of good standard; and

(p) "syllabii" means the curricula which shall comprise of Islamic Education as the main component and shall also include subjects of the general education system as may be prescribed.

3. Establishment of the Board.—(1) As soon as may be after the commencement of this Ordinance, the Federal Government shall, by notification in the official Gazette, establish a Board to be known as the Pakistan Madrassah Education Board.

(2) The Board shall be a body corporate having perpetual succession and a common seal with power, subject to the provisions of this Ordinance, to acquire, hold and dispose of property both moveable and immovable, and may, by the said name, sue and be sued.

(3) The headquarters of the Board shall be at Islamabad.

(4) The Board may establish its regional offices as and where it considers necessary.

4. Composition of the Board.—(1) The Board shall consist of the following members, to be appointed by the Federal Government, namely:—

(i)	An educationist of eminence	*Chairman*
(ii)	Sadr or nazim of a wafaq or tanzim or rabitah to be appointed by the Federal Government in consultation with the Chairman.	*Vice/Chairman*
(iii)	an educationist having experience in administrative matters.	*Secretary*
(iv)	Secretary, Ministry of Education or his nominee not below the rank of a Joint Secretary.	*Member*
(v)	Secretary, Ministry of Religious Affairs or his nominee not below the rank of a Joint Secretary.	*Member*
(vi)	Secretary, Ministry of Science and Technology or his nominee not below the rank of a Joint Secretary.	*Member*
(vii)	Chairman, University Grants Commission or a Member nominated by him.	*Member*
(viii)	two Ulema who are or have been members of the Council of Islamic Ideology to be nominated by the Chairman.	*Members*
(ix)	Director General, Dawa Academy, International Islamic University.	*Member*
(x)	one Professor who is also a head of the Department of Islamic Studies in a University.	*Member*
(xi)	Provincial Education Secretaries of all the four Provinces.	*Members*
(xii)	one President or Nazim of Wifaqs	*Members*
(xiii)	one President or Nazim of Tanzim	*Member*
(xiv)	one President or Nazim of Rabita	*Member*
(xv)	Chairman, Inter-Board Co-ordination Committee (IBCC)	*Member*
(xvi)	two representatives of the Ministry of Science and Technology	*Members*

(2) A member, other than an ***ex officio*** member, unless earlier removed shall hold office during the pleasure of the Federal Government

(3) No person shall be appointed or continue to be a member of the Board if he has been declared insolvent or is convicted of an offence involving moral turpitude or is declared disqualified from employment in, or dismissed from, Government service.

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(4) No person, who has committed misconduct, directly or indirectly, or he himself or his partner has any share or interest in a contract with, by or on behalf of the Board or is in any employment under, by or on behalf of the Board, shall be appointed or continue on the Board. On receipt of any such complaint against a member, the Board, after giving the member an opportunity of hearing, shall decide the matter, and send its recommendation to the Federal Government for its approval. The decision of the Federal Government shall be final.

5. Powers and functions of the Board.—(1) The Board shall have powers to perform such functions and exercise such powers as are necessary or conducive to implement and achieve the purposes of this Ordinance.

(2) Subject to the provisions of this Ordinance and with due regard to the autonomy of a Wifaq or Tanzeem or Rabita, the Board shall have the following powers and functions to perform:

(a) to establish such **model madaris** and **model darul ulooms** in which the Islamic Education is the main component and includes courses and curricula of the general education system as may be prescribed;

(b) to regulate and approve conditions for affiliation of such existing ***madaris*** as have duly been recommended by the Academic Council;

(c) to approve the curricula, courses of study and conditions for holding of examinations in the model **dini madaris** keeping in view the recommendations of the Academic Council;

(d) to organize teachers training programmes for the teachers of the ***model dini madaris*** and ***dar-ul-ulooms*** in various social sciences and religious courses;

(e) to grant affiliation and to lay down the regulations and to approve conditions for affiliation of existing madaris;

(f) to suggest ways and means to bridge the existing gulf between the general education system and the madaris by revising and improving the curricula of Madaris and general education programs;

(g) to approve the curricula, courses of study and the conditions for holding of examinations in the Dini Madaris on recommendations of the Academic Council;

(h) to appoint such officers and staff as it may consider necessary for the performance of its functions and define their duties and lay down conditions of service;

(i) to promote co-operation and co-ordination amongst existing Dini Madaris and their organizations;

(j) to approve equivalence of degrees, diplomas, sanads or certificates where curricula includes subjects of the general education system;

(k) to promote curricular and extra curricula activities in Model Dini Madaris and Model Darul Ulooms;

(l) to inspect or arrange for inspection of a Model Dini Madrasah or Model Darul Uloom with a view to improve the performance of such Madrasah or the Darul Uloom;

(m) to institute and award scholarships, medals and prizes subject to such conditions as may be prescribed;

(n) to assist in the development of libraries of Dini Madaris;

(o) to approve the Annual Budget;

(p) to advise the Government in matters pertaining to model Dini Madaris;

(q) to prescribe minimum conditions for admission of candidates to the examinations conducted by the Board and to print all educational material necessary for improving the standard of education;

(r) to regulate and decide all administrative matters including creation and abolition of posts under the Board;

(s) to enter into or carry out or cancel any contract to administer, invest buy or sell any moveable or immoveable property and assets;

(t) to spend or incur expenditure as may be necessary for carrying out purposes of this Ordinance;

(u) the Board may delegate any of its functions and powers to any member or officer of the Board or a committee or a sub-committee appointed by it

(v) to hear complaints, conduct enquiries and inspections and direct or recommend measures for the improvement of any dini madaris established by or affiliated to the Board; and

(w) to exercise *inter alia* all powers as given in this Ordinance and to perform all other acts necessary for carrying out the purposes of this Ordinance.

6. Visitation. The Board may cause an inspection or inquiry to be made in respect of any matter connected with the affairs of a Model Dini Madarsah or a Model Darul Uloom and shall from time to time appoint such persons as it may deem fit for the purposes of carrying out such inspection or inquiry and to submit its report to the Board.

7. Meetings of the Board.—(1) The meetings of the Board shall be called by the Chairman on such date, time and place as he may decide:

Provided that not more than six months shall intervene between the two meetings of the Board and at least eight days written notice sent by registered post or courier shall be given to the members specifying the agenda, date, time and place of the meeting.

(2) The Chairman or, in his absence the Vice-Chairman, shall preside over the meetings of the Board.

(3) One half of the total members of the Board shall constitute a quorum for the meeting of the Board, a fraction being counted as one.

(4) The decision of the Board shall be taken by the majority of its members present and voting, and in case of a tie, the Chairman shall have a casting vote.

8. Chairman.—(1) The Chairman of the Board shall be its principal executive officer and shall preside over the meetings of the Board.

(2) The Chairman shall exercise such powers and perform such functions as may be assigned to him by the Board and shall be responsible for the proper running of the affairs of the Board.

(3) In the absence of the Chairman, the Vice-Chairman shall exercise such powers and performs such functions as the Board may assign.

9. Secretary.– (1) There shall be a Secretary of the Board who shall be a full time officer appointed by the Federal Government on such terms and conditions as it may determine.

(2) The Secretary shall be the Administrative Officer of the Board and shall ensure subject to the approval of the Chairman that the orders of the Board and the Chairman are carried out and shall execute decisions for and on behalf of the Board. He shall also act as Secretary of the Academic Council.

(3) The Secretary shall with the approval of the Chairman send notice of a meeting. The notice of the meeting and agenda shall be sent to every member of the Board by registered post or courier.

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(4) The Secretary shall ensure that all funds are spent for the purpose for which they are granted, allocated or authorized and shall prepare and submit annual statement of accounts and budget estimates for the approval of the Board.

(5) The Secretary shall maintain in minutes of the meetings of the Board and its records and perform such other duties and functions as may be assigned to him by the Board.

(6) The Secretary shall also act as the Registrar of the Board and shall perform such functions as may be assigned to him in this connection by the Board.

10. Academic Council.– (1) There shall be an Academic Council of the Board to advise and assist it in the performance of its functions.

(2) The Council shall consist of the following members, to be appointed by the Board, namely:–

(1)	Chairman of the Board	*Chairman*
(2)	a representative of the Ministry of Education	*Member*
(3)	a representative of the Ministry of Science and Technology	*Member*
(4)	Director General Research, Ministry of Religious Affairs, Zakat and Ushr	*Member*
(5)	Chairman, Inter-Board Co-ordination Committee	*Member*
(6)	two eminent scholars	*Members*
(7)	one eminent scientist	*Member*
(8)	one eminent educationist	*Member*

(3) The Academic Council shall be the Advisory Committee of the Board and shall, subject to the provisions of this Ordinance, have powers to determine and recommend proper standards of teaching and instructions, syllabi and examinations for the model Dini Madaris and Darul Ulooms, for consideration and approval by the Board.

11. Establishment and affiliation of *dini madaris*.– (1) A Dini Madrassah or Darul Uloom may apply for affiliation under section 12.

(2) The Board may establish Model Dini Madaris and Model Darul Uloom for the purposes of this Ordinance.

12. Affiliation.—(1) Any institution (Dini darul uloom or dini madrassah) may apply to the Board for affiliation in accordance with the procedure as the Board may prescribe.

(2) The Board shall consider the application and may reject or grant affiliation on such terms and conditions as may be prescribed. The decision of the Board in any such matter shall be final.

13. Syllabii.—(1) Every ***dini madrassah*** and ***dar-ul-uloom*** affiliated with the Board shall teach Islamic education as the main component and shall also include such subjects of general education system as may be prescribed by the Board.

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(2) Where an affiliated ***dini madrassah*** or ***dar-ul-uloom*** contravenes the provisions of this Ordinance or any direction of the Board it may cancel the affiliation of such ***madrassah*** or ***dar-ul-uloom*** after giving the ***madrassah*** or ***Darul uloom*** as the case may be an opportunity of hearing.

14. Officers and servants of the Board to be public servants. The officers and servants of the Board shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code(Act XLV of 1860).

15. Officer and other staff. The Board may appoint such officers and staff as it may consider necessary for carrying out the purposes of this Ordinance.

16. Delegation of powers. The Board may, by order in writing and subject to such conditions as may be specified in the order, direct that any specific power or functions shall be exercisable by the Chairman or a member of the Board for a specified period which shall not extend for more than six months at a time.

17. Fund.—(1) There shall be established a fund to be known as Pakistan Madrasah Education Fund to which shall be credited all income of the Board including income from endowments and grants from the Federal Government, the Provincial Government or other organization:

Provided that any grant from an international agency shall not be accepted without sanction of the Federal Government.

(2) The funds of the Board may be used to finance the programme and activities of the model ***darul uloom*** and model ***dini madaris*** established by or affiliated to the Board.

18. Accounts and audit.— (1) The Board shall maintain complete and accurate books of accounts of its actual expenses and receipts and annually submit its report to the Federal Government.

(2) The Board shall cause to be carried out audit of its accounts by one or more auditors who are chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961), appointed by the Federal Government in consultation with the Auditor-General of Pakistan from a penal of chartered accountants proposed by the Board on such remuneration as the Federal Government may determine and annually submit its audited accounts to the Auditor General of Pakistan.

19. Indemnity. No suit, prosecution or other legal proceeding shall lie against the Chairman, any member of the Board or a committee thereof or an officer or employee of the Board, in respect of anything in good faith done or purported to have been done under this Ordinance or regulation made thereunder.

20. Power to make rules.—(1) The Board may, in consultation with the Federal Government, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) Without prejudice to the generally of the powers conferred by sub-section (1), such rules may provide for all or any of the following matters, namely:—

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(a) finances;

(b) general administration;

(c) management of assets and matters ancillary thereto; and

(d) such other matters as may be necessary for giving the effect to the provisions of this Ordinance,

21. Power to make regulations.— (1) The Board may, by notification in the official Gazette, make regulations for carrying out the purposes of this Ordinance.

(2) Without prejudice to the generally of the foregoing powers, such regulations may provide for all or any of the following matters, namely:—

(a) constitution of the committees, the appointment of the employees of the Board and their terms and conditions of service;

(b) matters relating to pension and provident fund for the benefit of the employees of the Board;

(c) admission, curricula, conduct of courses of study, quality institutions, regulation of examination and award of degrees and matters ancillary thereto; and

(d) such other matters as may be necessary for giving effect to the provisions of this Ordinance.

22. Removal of difficulties. If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Federal Government may, on the recommendations of the Board make such order, not inconsistent with the provisions of this Ordinance, as it may consider necessary for the removal of difficulty.

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THE ENFORCEMENT OF SHARI'AH ACT, 1991

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THE ENFORCEMENT OF SHARI'AH ACT, 1991

ACT NO. X of 1991

[5th June, 1991]

An Act for the enforcement of the Shari'ah

WHEREAS sovereignty over the entire Universe belongs to Almighty Allah alone, and the authority to be exercised by the people of Pakistan through their chosen representatives within the limits prescribed by Him is a sacred trust;

AND WHEREAS Islam has been declared to be the State religion of Pakistan and it is obligatory for all Muslims to follow the Injunctions of the Holy Quran and Sunnah to regulate and order their lives in complete submission to the Divine law;

AND WHEREAS the Objectives Resolution has been incorporated in the Constitution of the Islamic Republic of Pakistan as a substantive part thereof;

AND WHEREAS it is one of the fundamental obligations of the Islamic State to protect the honour, life, liberty and the fundamental rights of the citizens as guaranteed under the Constitution and to ensure peace and provide inexpensive and speedy justice to people through an independent Islamic system of justice without any discrimination ;

AND WHEREAS Islam enjoins establishment of social order based on the Islamic values of bidding what is right and forbidding what is wrong (amr bil Ma'roof wa nahi anil Munkar);

AND WHEREAS in order to achieve the aforesaid objectives and goals, it is necessary to give to these measures constitutional and legal backing;

It is hereby enacted as follows:

1. Short title, extent and commencement.— (1) This Act may be called the Enforcement of Shari'ah Act, 1991.

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(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

(4) Nothing contained in this Act shall affect the personal laws, religious freedom, traditions, customs and way of life of the non-Muslims.

2. Definition.—In this Act "Shari'ah" means the Injunctions of Islam as laid down in the Holy Quran and Sunnah.

Explanation.—While interpreting and explaining the Shari'ah the recognized principles of interpretation and explanation of the Holy Quran and Sunnah shall be followed and the expositions and opinions of recognised jurists of Islam belonging to prevalent Islamic schools of jurisprudence may be taken into consideration.

3. Supremacy of Shari'ah.— (1) The Shari'ah that is to say, the Injunctions of Islam as laid down in the Holy Quran and Sunnah, shall be the supreme law of Pakistan.

(2) Notwithstanding anything contained in this Act, the Judgement of any court or any other law for the time being in force, the present political system, including the Majlis-e-Shoora (Parliament) and Provincial Assemblies and the existing system of Government, shall not be challenged in any court, including Supreme Court, the Federal Shariat Court or any authority or tribunal:

Provided that nothing contained herein shall affect the rights of the non-Muslims guaranteed by or under the Constitution.

4. Laws to be interpreted in the light of Shari'ah.—For the purpose of this Act—

(a) while interpreting the statute-law, if more than one interpretation is possible, the one consistent with the Islamic principles and jurisprudence shall be adopted by the Court; and

(b) where two or more interpretations are equally possible, the interpretation which advances the Principles of Policy and Islamic provisions in the Constitution shall be adopted by the Court.

5. Observance of Shari'ah by Muslim citizens.—All Muslim citizens of Pakistan shall observe Shari'ah and act accordingly and in this regard the Majlis-e-Shoora (Parliament) shall formulate code of conduct for Government functionaries.

6. Teaching of, and training in, Shari'ah etc.—The State shall make effective arrangements—

(a) for the teaching of, and training in, the Shari'ah, Islamic jurisprudence and all other branches of Islamic law at appropriate levels of education and professional training;

(b) to include courses on the Shari'ah in the syllabi of the law colleges ;

(c) for the teaching of the Arabic language ; and

(d) to avail the services of persons duly qualified in Shari'ah, Islamic jurisprudence and Ifta in judicial system.

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7. Islamization of education.—(1) The State shall take necessary steps to ensure that the educational system of Pakistan is based on Islamic values of learning, teaching and character building.

(2) The Federal Government shall, within thirty days from the commencement of this Act, appoint a Commission consisting of educationists, jurists, experts, ulema and elected representatives as it may deem fit and appoint one of them to be its Chairman.

(3) The functions of the Commission shall be to examine the educational system of Pakistan to achieve the objectives referred to in sub-section (1) and make recommendations in this behalf.

(4) A report containing the recommendations of the Commission shall be submitted to the Federal Government which shall cause it to be placed before both the Houses of Majlis-e-Shoora (Parliament).

(5) The Commission shall have the power to conduct its proceedings and regulate its procedure in all respects as it may deem fit.

(6) All executive authorities, institutions and local authorities shall act in aid of the Commission.

(7) The Ministry of Education in the Government of Pakistan shall be responsible for the administrative matters relating to the Commission.

8. Islamization of economy.—(1) The State shall take steps to ensure that the economic system of Pakistan is constructed on the basis of Islamic economic objectives, principles, and priorities.

(2) The Federal Government shall, within thirty days from the commencement of this Act, appoint a Commission consisting of economists, bankers, jurists, ulema, elected representatives and such other persons as it may deem fit and appoint one of them to be its Chairman.

(3) The functions of the Commission shall be—

(a) to recommend measures and steps, including suitable alternatives, by which the economic system enunciated by Islam could be established ;

(b) to recommend the ways, means and strategy for such changes in the economic system of Pakistan so as to achieve the social and economic well being of the people as envisaged by Article 38 of the Constitution ;

(c) to undertake the examination of any fiscal law or any law relating to the levy and collection of taxes and fees or banking or insurance law or practice and procedure to determine whether or not these are repugnant to the Shari'ah and to make recommendations to bring such laws, practices and procedure in conformity with the Shari'ah ; and

(d) to monitor progress in respect of the Islamization of economy, identifying lapses and bottlenecks if any and suggest alternatives to remove any difficulty.

(4) The Commission shall oversee the process of elimination of *riba* from every sphere of economic activity in the shortest possible time and also recommend such measures to the Government as would ensure the total elimination of *riba* from the economy.

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(5) The Commission shall submit its reports on a regular basis and at suitable intervals to the Federal Government which shall place the same before both the Houses of Majlis-e-Shoora (Parliament) and shall also respond to any queries sent to it by the Federal Government in respect of establishment of the Islamic economic order.

(6) The Commission shall have the power to conduct its proceedings and regulate its procedure in all respects as it may deem fit.

(7) All executive authorities, institutions and local authorities shall act in aid of the Commission.

(8) The Ministry of Finance in the Government of Pakistan shall be responsible for the administrative matters relating to the Commission.

9. Mass media to promote Islamic values.— (1) The State shall take steps to promote Islamic values through the mass media.

(2) The publication and promotion of programmes against or in derogation to the Shari'ah, including obscene material shall be forbidden.

10. Protection of life, liberty, property, etc.—In order to protect the life, honour, liberty, property and the rights of the citizens, the State shall take legislative and administrative measures to—

(a) introduce administrative and police reforms;

(b) prevent acts of terrorism and sabotage and disruptive activities ; and

(c) prevent the possession and display of illicit arms.

11. Elimination of bribery and corruption.—The State shall take legislative and administrative measures, to eliminate bribery, corruption and malpractices and provide for exemplary punishment for such offences.

12. **Eradication of obscenity, vulgarity, etc.**—Effective legal and administrative measures shall be taken by the State to eradicate obscenity, vulgarity and other moral vices.

13. Eradication of social evils.—The State shall take effective measures for enactment of law eradicating social evils and promoting Islamic virtues on the principles of amr bil Ma'roof wa nahi'anil Munkar as laid down in the Holy Quran.

14. Nizam-i-adl.—The State shall take adequate measures for the Islamisation of the Judicial system by eliminating laws delays, multiplicity of proceedings in different courts, litigation expenses and ensuring the quest for truth by the court.

15. Bait-ul-Mal (Welfare Fund).—The State shall take steps to set-up a Bait-ul-Mal for providing assistance to the poor, needy, helpless, handicapped, invalids, widows, orphans and the destitute.

16. Protection of the ideology of Pakistan, etc.—The State shall enact laws to protect the ideology, solidarity and integrity of Pakistan as an Islamic State.

17. Safeguard against false imputations, etc.—The State shall take legislative and administrative measures to protect the honour and reputation of the citizens against false imputations, character assassination and violation of privacy.

18. International financial obligations, etc.—Notwithstanding anything contained in this Act or any decision of any court, till an alternative economic system is introduced, financial obligations incurred and contracts made between a National Institution and a Foreign Agency shall continue to, remain, and be, valid, binding and operative.

Explanation.—In this section, the expression "National Institution" shall include the Federal Government or a Provincial Government, a statutory corporation, company, institution, body, enterprise or any person in Pakistan and the expression "Foreign Agency" shall include a foreign government, a foreign financial institution, foreign capital market, including a bank and any foreign lending agency, including an individual and a supplier of goods and services.

19. **Fulfillment of existing obligations.**—Nothing contained in this Act or any decision made thereunder shall affect the validity of any financial obligations incurred, including under any instruments, whether contractual or otherwise, promise to pay, or any other financial commitments

made by or on behalf of the Federal Government or a Provincial Government or a financial or statutory corporation or other institution to make payments envisaged therein, and all such obligations promises and commitments shall be valid, binding and operative till an alternative economic system is evolved.

20. Rights of women not to be affected.—Notwithstanding anything contained in this Act, the rights of women as guaranteed by the Constitution shall not be affected.

21. Laws to be enacted by Majlis-e-Shoora (Parliament) and Provincial Assembly only.—Notwithstanding anything contained in this Act or the judgement of any court, including the Supreme Court, all laws shall be enacted exclusively by the Majlis-e-Shoora (Parliament) and the Provincial Assembly, as the case may be, and no law shall be made or be deemed to have been made unless it is made in the manner laid down in the Constitution.

22. Rules.—The Federal Government may, by notification in the official gazette, make rules for carrying out the purposes of this Act.

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RGN Date: 17-01-2025

THE EHTRAM-E-RAMAZAN ORDINANCE, 1981

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THE EHTRAM-E-RAMAZAN ORDINANCE, 1981

ORDINANCE No. XXIII OF 1981

[*25th June, 1981*]

AN

ORDINANCE

to provide for measures observe the sanctity of the month of Ramazan

WHEREAS, in view of the tenets of Islam, it is necessary to provide for measures to observe the sanctity of the month of Ramazan;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by Article 89 of the Constitution, read with the Provisional Constitution Order, 1981 (C. M. L. A. Order No. 1 of 1981), the President is pleased to make and promulgate the following Ordinance:-

1. Short title, extent and commencement.— (1) This Ordinance may be called the Ehtram-e-Ramazan Ordinance, 1981.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition.—In this Ordinance, unless there is anything repugnant in the subject or context, "public place" includes any hotel, restaurant, canteen, house room, tent, enclosures, road lane, bridge or other place to wich the public have access.

3. Prohibition of eating, etc., in public places.— (1) No person who, according to the tenets of Islam, is under an obligation to fast shall eat, drink or smoke in a public place during fasting hours in the month of Ramazan.

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with simple imprisonment for a term which may entend to three months, or with fine which may extend to five hundred rupees, or with both.

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4. Prohibition of serving eatables in certain public places.— (1) No proprietor, manager, servant, or other person in charge of a hotel, restaurant or canteen, or other public place, shall knowingly and wilfully offer or serve or cause to be offered or served any eatables during fasting hours in the month of Ramazan to any person who, according to the tenets of Islam, is under an obligation to fast.

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with simple imprisonment for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

5. Exemptions.—Nothing contained in section 4 shall apply in respect of—

(a) a canteen or kitchen maintained in a hospital for serving food to patients;

[1][(b) a restaurant, canteen, stall or wheel barrow, or the holder of a vending contract, within the premises of a railway station or in a train or a restaurant or canteen within the premises of an airport, seaport or bus stand or in a or in an aircraft;]

(c) a kitchen or dining-car of a train; or

(d) a kitchen or canteen meant for children within the premises of a primary school.

6. Cinema-houses, theatres, etc., to remain closed during Ramazan.— (1) All cinema-houses, theatres and similar other establishments or institutions shall remain closed during the month of Ramazan from the time of sunset to the expiration of three hours thereafter.

(2) If the proprietor, manager, servant or other person in charge of a cinema- house, theatre or similar other establishment or institution contravenes the provisions of sub-section (1), he shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.

7. Power to enter and arrest.— (1) If any Magistrate, the Chairman of a District Council or a Municipal Committee or a Town Committee, the Mayor of a Municipal Corporation, or the Chairman or a Member of a District Zakat and Ushr Committee has reason to believe that any offence punishable under this Ordinance has been committed by any person in or at a public place he may enter the public place and arrest such person.

(2) Where the Magistrate arresting any person under sub-section (1) is for the time being empowered to try in a summary way the offences specified in sub-section (1) of section 260 of the Code of Criminal Procedure, 1898 (Act V of 1898), such Magistrate may try such person at the place where he is arrested in accordance with the provisions contained in sections 262 to 265 of the said Code.

(3) When any person is arrested under sub-section (1) by a person other than a Magistrate referred to in sub-section (2) such person shall, if a bond to his satisfaction is not executed, forward the person arrested to the nearest Police Station, with a report of the circumstances in which such arrest was made.

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8. Cognizance of offences and procedure.— (1) Save as provided in sub-section (2) of section 7, no Court shall take cognizance of any offence punishable under this Ordinance except on a complaint in writing made by a person authorised to arrest under sub-section (1) of that section or by the officer in charge of the Police-Station in whose jurisdiction the offence is alleged to have been committed.

(2) Any Magistrate empowered for the time being to try in a summary way the offence specified in sub-section (1) of section 260 of the Code of Criminal Procedure, 1898 (Act V of 1898), may try any offence punishable under this Ordinance in accordance with the provisions contained in sections 262 to 265 of the said Code.

(3) The Officer in charge of the police-station to which a person arrested is forwarded under sub-section (3) of section 7 shall make a complaint to a Magistrate within twenty-four hours of the time on which such person is brought to the Police Station.

[1]Subs. and shall be deemed always to have been so subs. by Ordinance No. XXIX of 1981, s. 2.

(4) The trial of an offence publishable under this Ordinance shall be taken up on a priority basis and shall be concluded as expeditiously as may be administratively possible.

9. Power to make rules.— (1) The Federal Government may make rules for carrying out the purposes of this Ordinance.

(2) In particular, and without prejudice to the generality of the foregoing provisions, such rules may provide that, in a canteen, restaurant or dining-car referred to in clause (a), (b), (c) or (d) of section 5, eatables or articles of smoking shall only be served at a place protected from public view by means of a curtain or otherwise, and specify the classes of persons who may be admitted to any such canteen, restaurant or dining-car during fasting hours in the month of Ramazan.

(3) A person contravening any rule made under sub-section (1) shall be deemed to be guilty of an offence punishable under section 4 and shall be punishable accordingly.

10. Ordinance to override other laws.—The provisions of this Ordinance shall have effect notwithstanding anything contained in any other law for the time being in force.

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RGN Date: 30-01-2025